

STATE OF NEW YORK

4657--A

2025-2026 Regular Sessions

IN SENATE

February 10, 2025

Introduced by Sen. MAYER -- read twice and ordered printed, and when printed to be committed to the Committee on Investigations and Government Operations -- recommitted to the Committee on Investigations and Government Operations in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the legislative law, in relation to the law revision commission

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 70 of the legislative law, as amended by chapter
2 239 of the laws of 1944, is amended to read as follows:
3 § 70. Commission [~~created~~] continued; terms and qualifications of
4 members. A law revision commission is hereby [~~created~~] continued, [~~to~~]
5 and shall consist of the [~~chairman~~] chairs of the committees on the
6 judiciary and codes of the senate and assembly, ex-officio, and [~~five~~]
7 nine additional members, five members to be appointed by the governor,
8 one member to be appointed by the temporary president of the senate, one
9 member to be appointed by the speaker of the assembly, one member to be
10 appointed by the chief judge of the court of appeals and one member to
11 be appointed by the attorney general. The members first appointed by the
12 governor following the effective date of the chapter of the laws of two
13 thousand twenty-six that amended this section shall be appointed for
14 such terms that the term of one member will expire on each succeeding
15 thirty-first day of December. The member first appointed by the tempo-
16 rary president of the senate shall be appointed for a term of three
17 years. The member first appointed by the speaker of the assembly shall
18 be appointed for a term of five years. The member first appointed by
19 the chief judge of the court of appeals shall be appointed for a term of
20 four years. The member first appointed by the attorney general shall be
21 appointed for a term of five years. The term of a member thereafter

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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1 appointed, except to fill a vacancy occurring otherwise than by expira-
2 tion of term, shall be five years from the expiration of the term of
3 ~~[his]~~ such member's predecessor. A vacancy in the office of a member
4 ~~[appointed by the governor]~~ occurring otherwise than by expiration of
5 term, shall be filled by the ~~[governor]~~ appointing authority for only
6 the remainder ~~[only]~~ of the term of such member's predecessor. ~~[Upon~~
7 ~~making the original appointments]~~ In July of each year, the ~~[governor]~~
8 commission's membership shall designate one of the appointed members as
9 ~~[chairman]~~ chair of the commission. ~~[Upon]~~ A vacancy in the ~~[appoint-~~
10 ~~ment]~~ office of ~~[a successor to]~~ the ~~[chairman]~~ chair of the commission
11 occurring otherwise than by expiration of term, ~~[the governor]~~ shall
12 ~~[designate such successor or other member of]~~ be filled by the ~~[commis-~~
13 ~~sion as chairman]~~ commission's membership for only the remainder of the
14 term of such chair's predecessor. Four members appointed by the governor
15 shall be attorneys and counselors at law, admitted to practice in the
16 courts of this state, or members of law faculties of universities or law
17 schools within the state recognized by the board of regents of the state
18 of New York, and at least two of ~~[them]~~ such members shall be members of
19 law faculties of universities or law schools within the state recognized
20 by the board of regents of the state of New York. The commission shall
21 meet in person or virtually at least on a quarterly basis.

22 § 2. Section 71 of the legislative law, as amended by chapter 358 of
23 the laws of 1961, is amended to read as follows:

24 § 71. Expenses; employees. Each of the members of the commission
25 appointed by the governor or by members of the legislature shall receive
26 reimbursement for necessary expenses incurred in the performance of
27 official duty. The commission may appoint such employees as may be need-
28 ed, prescribe their duties, and fix their compensation within the amount
29 appropriated for the commission.

30 § 3. Section 72 of the legislative law, as added by chapter 597 of the
31 laws of 1934, is amended to read as follows:

32 § 72. Purposes of commission. It shall be the duty of the law revision
33 commission:

34 1. To examine the common law and statutes of the state and current
35 judicial decisions ~~[for the purpose of discovering defects and anachro-~~
36 ~~nisms in the law]~~ and recommending needed reforms.

37 2. To receive and consider suggested areas of study and proposed
38 changes in the law recommended by judges, justices, public officials,
39 lawyers, the American law institute, the ~~[commissioners for the~~
40 ~~promotion of uniformity of legislation in the United States]~~ Uniform Law
41 Commission, ~~[any]~~ bar ~~[association or]~~ associations, other learned
42 bodies, or the general public. Suggestions for areas of study made by
43 statute, the governor, members of the legislature, court of appeals
44 judges, or the attorney general shall be given priority review for
45 consideration by the commission.

46 3. ~~[To receive and consider suggestions from judges, justices, public~~
47 ~~officials, lawyers and the public generally as to defects and anachro-~~
48 ~~nisms in the law.~~

49 ~~4.]~~ To recommend, from time to time, such changes in the law as it
50 deems necessary to modify or eliminate antiquated ~~[and]~~ or inequitable
51 rules of law, and to bring the law of this state, civil and criminal,
52 into harmony with modern conditions.

53 ~~[5.]~~ 4. To report its proceedings annually to the legislature on or
54 before February first, and, if it deems advisable, to accompany its
55 report with proposed bills to carry out any of its recommendations.

1 § 4. The legislative law is amended by adding a new section 73 to read
2 as follows:

3 § 73. Funding of the commission. There is hereby established in the
4 joint custody of the comptroller and commissioner of taxation and
5 finance a fund to be designated as the law revision commission fund. The
6 commissioner shall deposit into the law revision commission fund all
7 moneys appropriated to the law revision commission. The moneys so
8 received and deposited in the law revision commission fund shall not be
9 commingled with moneys from the general fund and shall be used solely
10 for the purpose of carrying out the provisions of this article.

11 § 5. This act shall take effect immediately.